

2026 BALLOT QUESTIONS

2026 Ballot Question Pamphlet compiled by the Office of the Secretary of State

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The title, explanation, and effect of a vote for each ballot question were provided by the Attorney General. No other statements on this pamphlet reflect the opinion of the Secretary of State or Attorney General.

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12-13-23. Distribution of public information. The secretary of state shall distribute public information on any amendment to the Constitution, initiated measure, or referred law submitted to the electors for approval. The secretary of state shall compile the public information by printing a statement in support of the amendment to the Constitution, initiated measure, or referred law written by its proponents, if any can be identified, and a statement against the amendment to the Constitution, initiated measure, or referred law written by its opponents, if any can be identified. No statement written by a proponent, or an opponent may exceed three hundred words in length. The secretary of state is not responsible for the contents, objectivity, or accuracy of the statements written by the proponents and opponents. The pamphlet shall also include the attorney general's title, explanation, and a recitation of the effect of a "Yes" or "No" vote as written pursuant to § 12-13-9 or 12- 13-25.1; number of pages and sections in the proposed or referred language; and, if applicable, a fiscal note.

Please feel free to photocopy and distribute this pamphlet. You may also bring the pamphlet with you to vote at your polling place.

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Constitutional amendments and initiated and referred measures approved by majority vote will become effective on the first day of July after the completion of the official canvass by the State Canvassing Board. (SDCL 2-1-12)

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Constitutional Amendment I

Title: An Amendment to the South Dakota Constitution that Repeals Expanded Medicaid Coverage if Federal Funding for the Program Drops below 90%.

Attorney General Explanation: Medicaid is a program, funded by the State and the federal government, to provide medical coverage for low-income children, pregnant women, disabled individuals, and the elderly. In the 2022 General Election the voters approved Constitutional Amendment D, which expanded Medicaid eligibility in South Dakota. Amendment D requires the State to also provide Medicaid benefits to anyone over the age of 18 and under 65 whose income is at or below 133% of the federal property level, plus 5% of the federal poverty level for the applicable family size. Currently, federal law requires the federal government to fund 90% of South Dakota's Medicaid expansion.

This proposed Constitutional Amendment ends the expanded Medicaid coverage if the federal funding for expansion drops below 90%. If federal funding drops below that 90% threshold, Medicaid coverage will once again only apply to low-income children, pregnant women, disabled individuals, and the elderly.

Vote "Yes" to adopt the amendment.
Vote "No" to leave the Constitution as it is.

The text of this constitutional amendment is two pages long with two sections.

Pro – Constitutional Amendment I	Con – Constitutional Amendment I
Amendment I is about making sure that South Dakotans get to make their own decisions about how to spend state money. It would NOT automatically end Medicaid expansion. It would let South Dakotans make that decision. In 2022, voters approved Medicaid expansion. The state has honored that vote, and today about 30,000 South Dakotans receive coverage through the program. A major reason voters supported expansion was a promise from the federal government: Washington would pay 90% of the cost, while South Dakota would pay 10%. Amendment I says that as long as Washington keeps that promise, nothing changes. But what if Washington changes the deal? Think about any service you buy at a set price. If the company raises the price, you get to decide whether the service is still worth the cost. South Dakota deserves the same choice. For every 10% of Medicaid expansion costs shifted from Washington to South Dakota, our state would have to find about $36 million more each year. That could mean higher taxes or cuts elsewhere. Our state has many important needs. We fund schools, law enforcement, nursing homes, and services for people with disabilities. Medicaid expansion for able-bodied, working-age adults should not have a guaranteed place at the front of the line if Washington stops paying its promised share. Amendment I does not prevent South Dakota from continuing Medicaid expansion. It simply ends the constitutional requirement if federal funding falls below 90%. Legislators and voters could then decide whether expansion is still worth the new cost. Our state has participated in Medicaid programs for more than fifty years, without having it in the constitution. South Dakotans made the decision to expand Medicaid. If Washington changes the deal, South Dakotans should make the next decision too. **Vote YES on Amendment I.** Lt. Governor Tony Venhuizen; Sen. Casey Crabtree, Madison; and Rep. Will Mortenson, Ft. Pierre	A vote **NO** would keep the South Dakota Constitution unchanged and preserve Medicaid expansion as approved by South Dakota voters in 2022. Medicaid expansion provides health insurance to adults with incomes up to $1,835 per month (about $22,00 per year) for a single individual or $3,142 per month ($37,700 per year) for a family of three. Before expansion, many low-income South Dakotans had no affordable way to see a doctor or fill prescriptions. A vote **NO** would allow approximately 30,000 South Dakotans who receive insurance through Medicaid expansion to keep their insurance and access the care needed to stay healthy, support their families, work, and contribute to their communities. A vote **NO** would ensure that changes in federal funding do not automatically take health coverage from South Dakotans. Statement from Deb Fischer-Clemens, RN, BSN, MHA